

26NNCV00337 26NNCV00337

County: los-angeles

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Case Number: 26NNCV00337 Hearing Date: June 26, 2026 Dept: D

TENTATIVE RULING

Calendar: 2

Date: June 26, 2026

Case No: 26NNCV00337 Trial Date: Not yet set

Case Name: Karapetyan v. The Pasadena Center Operating Company, et al.

DEMURRER

[CCP § 430.10 subd. (e)]

Moving Party: Defendant, The Pasadena Center Operating Company dba Pasadena

Ice Skating

Responding Party: Plaintiff, Aghavni Karapetyan

RELIEF REQUESTED:

Sustain demurrer to Complaint.

CAUSES OF ACTION: from Complaint

1) Negligence

2) Premises Liability

REQUEST FOR JUDICIAL NOTICE:

The Court may take judicial notice of “[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evidence Code § 452, subd. (h).)

Pursuant to Defendant’s request, the Court takes judicial notice of the fact that Defendant was created by Chapter 2.165 of the Pasadena Municipal Code and is registered with the State of California as a nonprofit public benefit corporation. (RJN, Exs. 1-2.)

Pursuant to Plaintiff’s request, the Court takes judicial notice of: (1) Defendant’s last statement of facts submitted to the State of California Secretary of State on July 31, 2019; (2) the Certificate of Fact of Non-Filing issued by Los Angeles County clerk’s office certifying that as of May 11, 2026 no record could be found of a filing under the name “THE PASADENA CENTER OPERATING COMPANY;” and (3) Defendant’s 2023 Annual Report listing Defendant’s governing body members for 2023.

SUMMARY OF FACTS:

Aghavni Karapetyan (“Plaintiff”) alleges that on February 3, 2024, she was present at the ice-skating rink owned and operated by The Pasadena Center Operating Company dba Pasadena

Ice Skating (“Defendant”). Plaintiff alleges that while she was skating on the ice rink surface, her foot suddenly caught a broken section of the ice causing Plaintiff to trip and fall. The Complaint alleges that Plaintiff sustained severe personal injuries and was rendered sick, sore, lame, injured, and otherwise damaged by the fall.

ANALYSIS:

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

“A demurrer tests the sufficiency of a complaint as a matter of law.” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.) “[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded.” (Ibid.) Allegations are to be liberally construed. (CCP § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Accordingly, “[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer.” (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-610.) A demurrer, however, “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

Government Tort Claims Act

Prior to filing a suit against a public entity, a plaintiff must comply with the Government Tort Claims Act ("GCA"), which states, in part: "no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented . . . until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board . . ." (Government Code ("Gov. Code"), § 945.4)

A claim for death or injury to person or personal property shall be presented not later than six months after the accrual of the cause of action. (Gov. Code, § 911.2, subd. (a).) A claim "relating to any other cause of action shall be presented as provided in Article 2 (commencing with Section 915) not later than one year after the accrual of the cause of action." (Id.) When a claim required to be presented pursuant to Government Code section 911.2, subdivision (a) is not presented within that time, a written application may be made to the public entity for leave to present that claim. (Gov. Code, § 911.4, subd. (a).) The application shall be presented to the public entity within a reasonable time not to exceed one year after the accrual of the cause of action and shall state the reason for the delay in presenting the claim. The proposed claim shall be attached to the application. (Gov. Code, § 911.4, subd. (b).)

Defendant demurs to the Complaint in its entirety on the grounds that Plaintiff failed to comply with the claim presentation requirements of the GCA. The Court has taken judicial notice of the fact that Defendant is a public entity for purposes of the GCA. (RJN, Exs. 1-2) Accordingly, Plaintiff was required to present a prelitigation claim prior to bringing this action. Plaintiff does not dispute that she did not present a claim but rather argues that Plaintiff is excluded from the claim presentation requirements, because Defendant failed to comply with Government Code section 53051. (Opp., p. 3:5-7.)

A plaintiff's failure to present a claim does not constitute a bar or defense to the maintenance of an action against a public agency if, during the 70 days immediately following the accrual of the causes of action, either: (1) no statement pertaining to the public agency is on file with the Secretary of State and with the county clerk of each county in which the public agency then maintains an office; or (2) the statement on file is "so inaccurate or incomplete that it does not substantially conform to the requirements of Section 53051." (Gov. Code, § 946.4, subd. (a).) "On any question of fact arising within the scope of paragraphs (1) and (2) of subdivision (a), the burden of proof is upon the public agency." (Gov. Code, § 946.4, subd. (b).)

To comply with these requirements, a governing body of the public agency must file, with the Secretary of State and the county clerk of each county in which the agency maintains an office, a statement of (1) the full legal name of the agency; (2) the official mailing address of the agency's governing body; (3) the name and residence or business address of each member of that body; and (4) the name, title, and residence or business address of the chairperson, president or other presiding officer, and clerk or secretary of the governing body. (Gov. Code, § 53051(a).)

Plaintiff asserts that Defendant is not in compliance with the filing requirements first because, in the 2019 statement of facts listed with the California Secretary of State, Defendant's legal name is listed as "Pasadena Center Operating Company" as opposed to "The Pasadena Center Operating Company." (RJN, Ex. A.) This argument is unavailing. The discrepancy between "Pasadena Center Operating Company" and "The Pasadena Center Operating Company" is a minor inconsistency which does not render the statement "so inaccurate or incomplete" that it does not substantially conform to the government filing requirements.

Second, Plaintiff asserts that Defendant's 2019 statement and Defendant's 2023 annual report include several different governing body members. (RJN, Exs. A, C.) Plaintiff argues that Defendant thus failed to file an amended statement within 10 days after making changes to the members in violation of Government Code section 53051, subdivision (b). (Opp., pp. 3:23-6:5.) However, the relevant inquiry is whether during the 70 days immediately following February 3, 2024, the statement on file substantially conformed to the filing requirements. (Gov. Code, § 946.4.) The list of board members reflected in Defendant's 2023 annual report, akin to a marketing brochure (See RJN, Ex. 3), does not bear on what information was on file with the Secretary of State and county clerk between February 3, 2024 and April 13, 2024.

Lastly, Plaintiff argues that Defendant is not in compliance with Government Code section 53051, subdivision (a), because there is no record of a filing under the name "The Pasadena Center Operating Company" with the Los Angeles County Clerk's office. (RJN, Ex. B.) The statute requires that a statement pertaining to the public agency is on file "in the office of the Secretary of State and of the county clerk of each county in which the public agency then maintains an office." (Gov. Code, § 946.4, subd. (a)(1), emphasis added.) Accordingly, Defendant's failure to file a statement with the Los Angeles County clerk

would excuse Plaintiff from the prelitigation claim requirement. However, while Plaintiff raises this argument in the opposition to the demurrer, there are no allegations in the Complaint demonstrating that Plaintiff is exempted from the government claims requirement. The claim presentation requirement "is not merely procedural, but is a condition precedent to maintaining a cause of action and, thus, is an element of the plaintiff's cause of action." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1236.)

Thus, the demurrer will be SUSTAINED, with leave to amend, so that Plaintiff may allege facts demonstrating that she is exempted from the claim presentation requirement.

RULING:

Defendant's Demurrer is SUSTAINED, with 10 days leave to amend.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.